



Guide to State & Local Laws on Facial Recognition Technology

A Reference Guide to U.S. State and Local Laws on Facial Recognition Technology and Related Legislative Trends

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The Security Industry Association (SIA) is the leading trade association for global security solution providers, with over 1,400 innovative member companies representing thousands of security leaders and experts who shape the future of the security industry.

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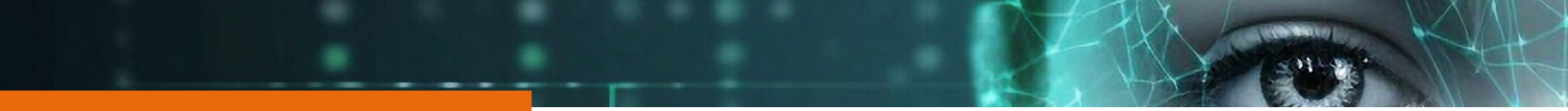
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INTRODUCTION

Welcome to the first edition of the Security Industry Association (SIA) Guide to State and Local Laws on Facial Recognition Technology for SIA members. As of this writing, 13 states and 23 local jurisdictions have laws specifically addressing facial recognition technology. It can be challenging to navigate this legal landscape, as all such laws are relatively new and untested. Some are also very complex. It is imperative that any business supplying and any commercial or government entity using facial recognition technology products in a jurisdiction where such laws apply should consult an attorney to ensure compliance; however, it is hoped that this guide can serve as a starting point regarding the requirements and provide additional policy perspectives that could assist with informed compliance efforts.

The Importance of Facial Recognition Technology

Advances in computing power and capabilities thanks to artificial intelligence, combined with rapid improvements in the quality of photo and video technology in the last 15 years, have allowed facial recognition technology to develop and mature. Simply put, facial recognition software compares and matches facial images. This is done using an algorithm to compare a presented image with one or more “enrolled” images, after the images are converted to unique numerical versions readable by that specific system and compared for similarity.

Facial recognition has three primary functions, with differing outputs.

Verification: Verifying a person matches an enrolled image associated with their identity

Output: An automated yes/no decision to authenticate

Identification: Determining that an image matches one or more images enrolled in a database

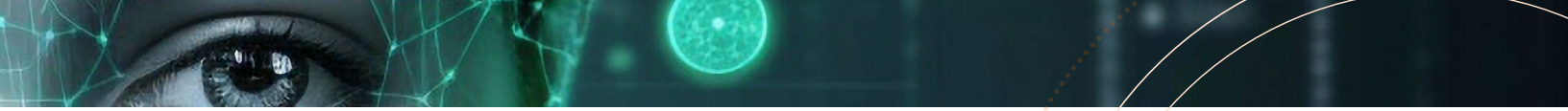
Output: Either an automated yes/no decision of some kind or flagging a likely match or non-match for further human review

Investigation: Helping determine whether a matching image is in a database for an investigative purpose

Output: A series of images from a database with the highest similarity scores are provided for review

These functions have proven to be incredibly useful across many types of applications. The purposes can be vastly different from one another, presenting application-specific implementation considerations – from verifying an identity in a remote online transaction to physically opening

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a door for an authorized person to helping law enforcement investigators narrow down a set of possible matching photos.

This technology is particularly important to the security field because it enhances capabilities of solutions like video security, access control and identity management systems that help end users secure their facilities, employees and patrons against the threat of violence, theft or other harm.

The use of facial recognition technology has benefited our society in countless but underpublicized ways – helping law enforcement find missing children, fight human trafficking, find dangerous criminals and bring sexual predators to justice. Other benefits extend to everyday life, as the technology allows an individual to conveniently and securely prove their identity to enter a venue, board a plane, perform online transactions and seamlessly access personalized experiences.

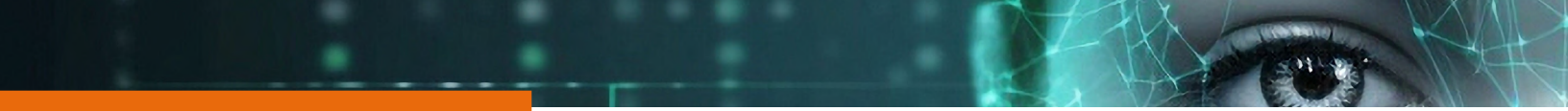
At the same time, public concerns have surfaced over whether the technology is accurate or could be used in ways that raise privacy and civil liberties concerns. As a result, there is a clear need to bolster public trust, in particular that law enforcement agencies are leveraging accurate facial recognition software tools in a lawful, effective and nondiscriminatory manner that benefits all of our residents and communities. It is critical to address these concerns, which have prompted most legislation that has been enacted regarding facial recognition.

POLICY PERSPECTIVE

SIA works to establish the security industry as a stakeholder, and industry technology leaders as primary source of trusted expertise on facial recognition technology. In doing so, we help shape related policies enacted and in development across the nation. We have committed to a set of guidelines to be used in the development and deployment of this technology, outlined in *SIA's Principles for the Responsible and Effective Use of Facial Recognition Technology*¹. Our goal is to ensure that legislation on facial recognition technology is sensible and consistent with these principles and avoids blanket bans or unnecessarily restrictive policies that compromise proven benefits.



¹ <https://www.securityindustry.org/report/sia-principles-for-the-responsible-and-effective-use-of-facial-recognition-technology/>



SCOPE OF THIS GUIDE

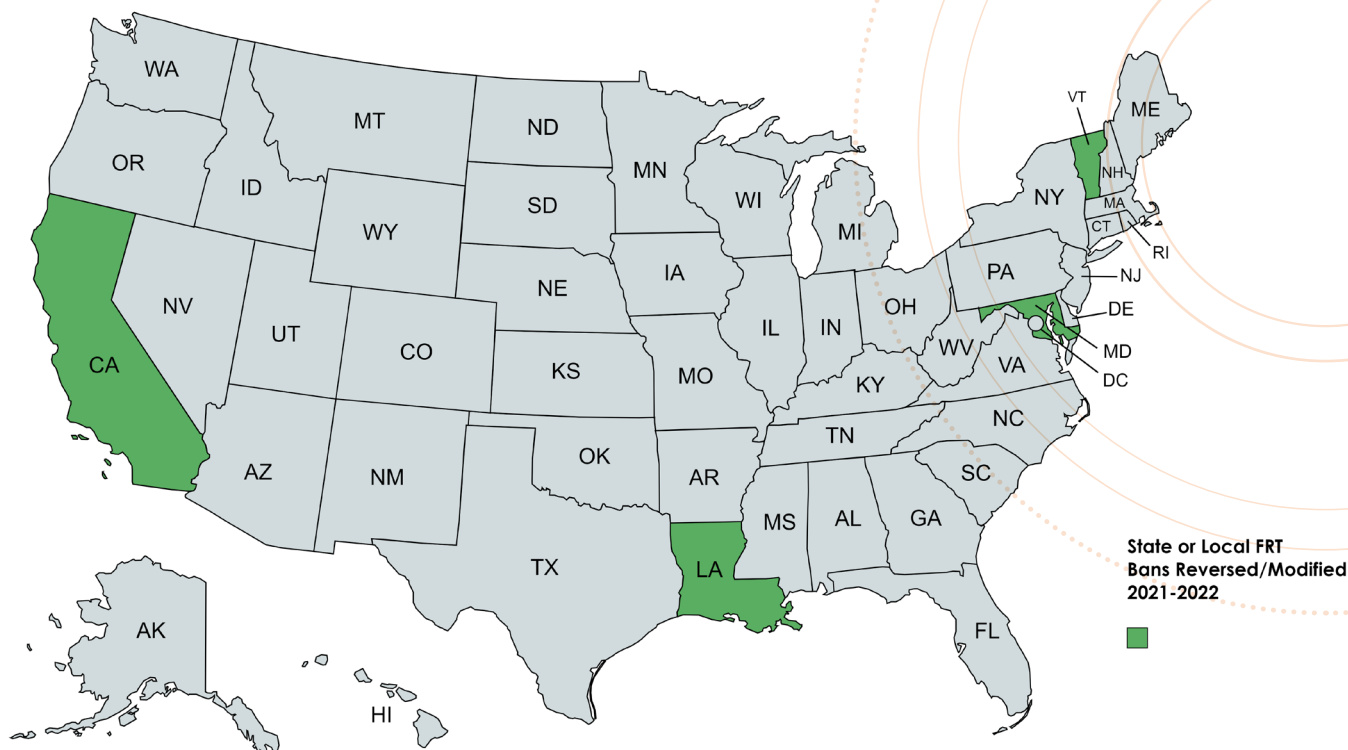
This guide covers U.S. state and local laws that impose requirements specifically and solely addressing the use of facial recognition technology, nearly all of which so far pertain to government entities only. Information in this guide is presented primarily with suppliers and end users of safety and security-related applications of facial recognition technology in mind, though it is applicable to other types of applications of this technology as well. Other broader laws on biometric data and technologies, which apply generally to commercial and consumer use versus government, are covered in a separate resource, the *SIA Guide to U.S. Biometric Privacy Laws*². Commercial use of facial recognition is legal in all 50 U.S. states, though the 2008 Illinois Biometric Information Protection Act limits the types of facial recognition applications in that state. Comprehensive data privacy laws in other states such as California and Texas include important provisions regarding security uses of biometric technologies, including facial recognition, which are covered in the that Guide.

LEGISLATIVE TRENDS

Most recently enacted laws, as well as recent legislative proposals specific to facial recognition technology, have focused on addressing law enforcement concerns. Interest in establishing robust policy governing law enforcement use is growing, as some states and localities that briefly experimented with bans on the technology have quickly reversed course to overturn blanket restrictions once the impact to criminal investigations became clear.

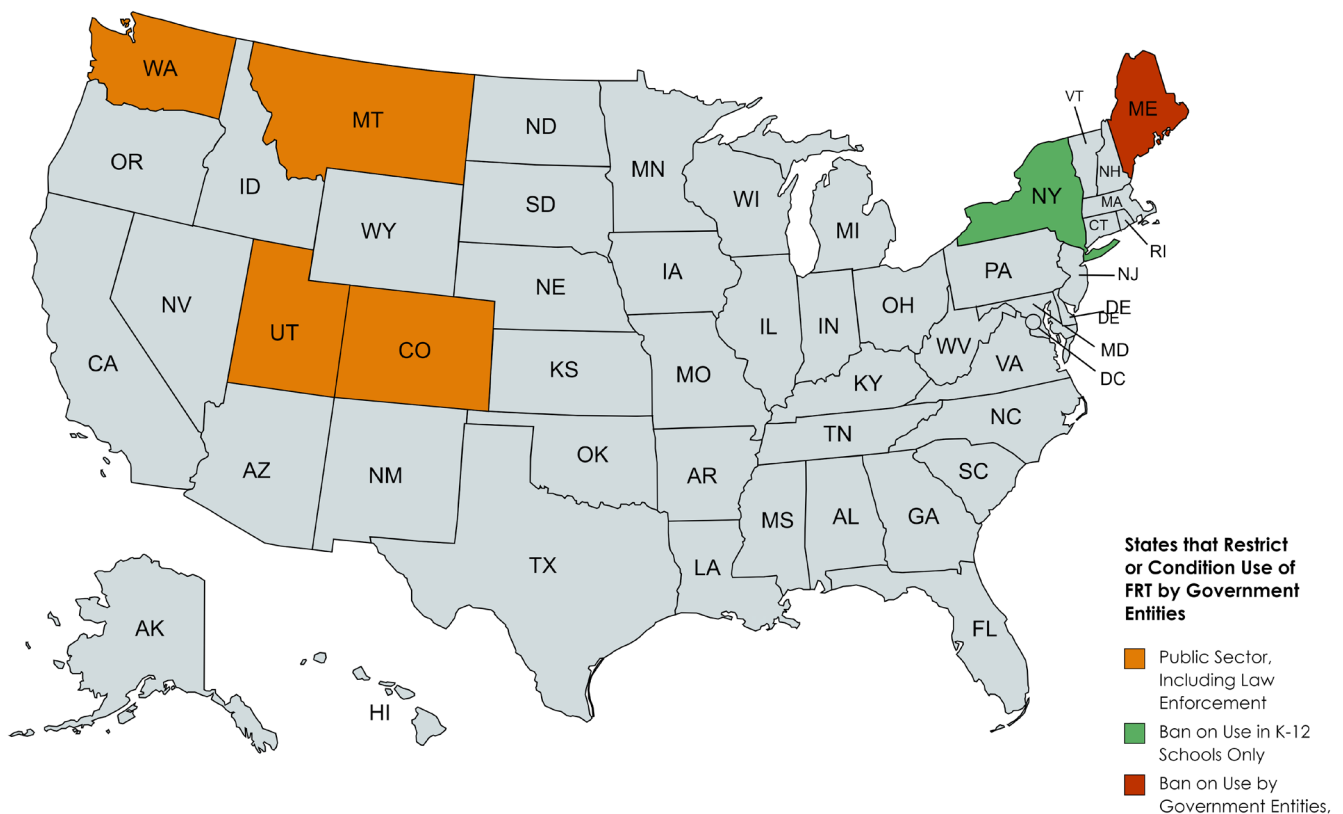
These developments reflect a growing acknowledgement of the often-unanticipated consequences of sweeping bans versus more targeted policies that could address specific privacy or accuracy concerns. It is also good sign that some policymakers are taking the time to thoroughly examine the issues and build out clear policies in a bipartisan manner. Establishing the right foundational safeguards in statute, combined with more detailed requirements in agency procedural rules, can be the most effective approach to ensuring effectiveness and accountability for law enforcement agencies. SIA considers the new laws in Virginia, Alabama and Kentucky to be consistent with its principles and with such an approach.

² <https://www.securityindustry.org/report/guide-to-u-s-biometric-privacy-laws/>



While five states have enacted laws that are more broadly applicable to state and local government entities, only one (Maine) has enacted a blanket prohibition, and outside that exception all are western states: Washington (2020), Utah (2021), Colorado (2022) and Montana (2023). Currently, there is no state law (specific to facial recognition) applicable to commercial and private-sector use, however biometric technologies are increasingly covered under data privacy laws, as the number of states adopting such measures expands. This trend continues toward the commercial use of facial recognition technology with appropriate guardrails for consumer privacy and safety/security applications.

But many safety and security applications of the technology could be essentially the same whether the end user is a commercial or government entity, so these recent measures deserve special attention. It is important to stress how *different* each of the measures are from each other, as they were not for the most part developed from a common legislative model. The measures accomplish their stated goals to varying degrees depending on the level of understanding of the technology and its use cases that informed development. Pay particular attention to the definition of key terms, scope, covered use cases and areas of ambiguity. SIA members can reach out to SIA for any further information that might be needed; however, review by counsel may be necessary to address questions suppliers or end users may have.



STATE LAWS THAT RESTRICT OR PLACE CONDITIONS ON USE BY GOVERNMENT ENTITIES



STATE OF COLORADO

Type: Regulatory

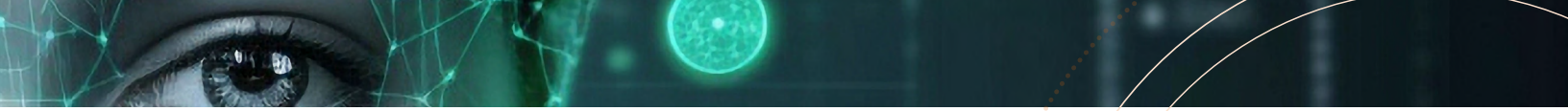
Effective: Aug. 10, 2022

Text Link: https://leg.colorado.gov/sites/default/files/2022a_113_signed.pdf

Applicable to: All state and local government agencies, including law enforcement agencies

Key Requirements: Based in part on Washington's law passed the previous year (see below), this law imposes conditions and requirements on state and local government agencies that procure or use "facial recognition systems." This is defined as "technology that analyzes facial features to facilitate the identification, verification or persistent tracking of individuals in still or video images," terms that are further defined in the measure.

The law requires that agencies follow extensive steps prior to procurement, use or continuing to use a facial recognition service. These include:



- Notifying a “reporting authority,” meaning a city council or other elected body at the local level, or for state agencies, the Colorado Office of Information Technology
- Producing an “accountability report” at least 90 days prior, specifying why the technology is being used and including many other required data points, which must be updated at least every two years
- Receiving public comment on the “accountability report” and holding at least three meetings where feedback can be provided
- For services used to “make decisions that produce legal effects concerning individuals or similarly significant effects concerning individuals,” agencies must ensure that those decisions are “subject to meaningful human review” and that the services are tested in “operational conditions” by the agency prior to deployment
- Committing to periodic training of users

Law Enforcement: Unlike Washington’s somewhat similar law, the prohibitions on certain functions and applications of the technology apply only in a law enforcement context. In a key provision, the Colorado law requires a warrant prior to law enforcement agency use of a facial recognition system for “ongoing surveillance,” “real-time or near real-time identification” or “persistent tracking” as defined, except when it is “necessary to develop leads in an investigation,” when “the agency has established probable cause” and in several other scenarios.

Despite the challenge of deciphering some of the more ambiguous elements required in accountability reports under the new law, at least several local law enforcement agencies have embarked on the process laid out in the statute beginning in 2023, and posted reports that could be helpful and instructive to other agencies considering the same.³

Key Exemptions: Several notable technology applications are exempted entirely from the requirements under this law, including state and local entities that use a facial recognition service:

- **In connection with a physical access control system in order to grant or deny access to a secure area**
- In association with a federal agency to verify the identity of individuals presenting themselves for travel at an airport (e.g., curb-to-gate programs)

³ See for example, Avarda Police Department: <https://www.arvadaco.gov/DocumentCenter/View/2256/FRS-Accountability-Report?bidId=>; <https://www.arvadaco.gov/917/Facial-Recognition-Technology> and Avon Police Department: <https://www.avon.org/2459/Facial-Recognition-Technology>.

- Pursuant to a federal regulation or order, or that uses a facial recognition service in partnership with a federal agency to fulfill a congressional mandate, fulfill aviation security directives or comply with federal law (such as U.S. Customs and Border Protection Biometric Entry-Exit and Simplified Arrival programs)
- In their capacity as a state or local utility

Special provision on schools: In one of its more restrictive provisions, the law places a moratorium (temporary restriction) on new contracting for facial recognition services by school districts and charter schools, through July 1, 2025; however, it specifically allows contracts involving the services that were in place prior to the effective date to be carried out and renewed.

Unique Aspects: The new law also established a 5-year “Task Force for the Consideration of Facial Recognition Services” to make future policy recommendations. It is chaired by Sen. Chris Hansen, who sponsored the 2022 legislation, and includes representatives across a diverse spectrum of stakeholders, including the Security Industry Association.

Enforcement: No specified mechanism.



STATE OF MAINE

Type: Ban, with limited exception for law enforcement

Effective Date: Oct. 18, 2021

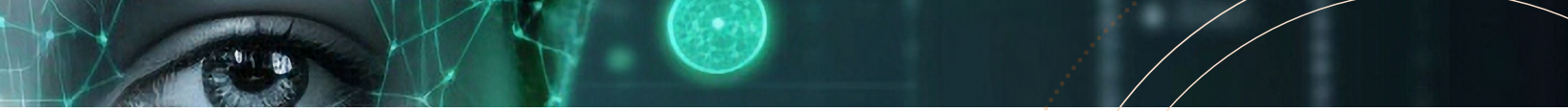
Text Link: <https://legislature.maine.gov/statutes/25/title25sec6001.html>

Applicable to: All state and local government agencies, including law enforcement agencies

Key Requirements: Maine is the only state to completely prohibit the use of facial recognition technology by state and local government agencies, outside law enforcement. Labeled “facial surveillance” defined as “an automated or semi-automated process that assists in identifying or verifying an individual, or in capturing information about an individual, based on the physical characteristics of an individual’s face” the law prohibits use of a facial surveillance system, or request for use of such system by an employee or official of a state and local government entity.

For law enforcement related purposes, an exception to the ban is provided for:

1. Investigating a serious crime, when there is probable cause to believe that an unidentified individual in an image has committed the serious crime
2. Assisting in the identification of a person who is deceased or believed to be deceased
3. Assisting in the identification of a missing or endangered person



For these purposes, requests can only be made to the Department of Motor Vehicles (to query driver's license data) or the State Police (to facilitate a query of records at the Federal Bureau of Investigation (FBI) or other jurisdiction), unless there is "an emergency posing an imminent danger of death or serious physical injury" (the Department of Motor Vehicles can request use by other jurisdictions for antifraud purposes). The measure further stipulates that "facial surveillance data" does not, without other evidence, establish probable cause justifying arrest, search or seizure.

Notable exceptions include "technology that analyzes the eye's iris in a regional jail or county jail."

Enforcement: Establishes a private right of action against an agency in violation and specifies disciplinary action against employees in violation, subject to due process and of any applicable collective bargaining agreement.

POLICY PERSPECTIVE

Crafted with narrow input limited to civil rights organizations and the Maine State Police (concerned primarily with provisions applicable to law enforcement), the measure is the most broadly restrictive of statewide measures by precluding nearly all other applications of facial recognition technology that could be used by government entities, regardless of use case or potential benefit to citizens – both now and in the future. Even the law enforcement exception is extraordinarily limited, as the DMV data set is only roughly one million records and of little help in scenarios where a key suspect or witness to a serious crime is from out of state and is not a Maine driver's license holder. The emergency exception tied to risk of death or bodily danger is also extremely limited and would not include otherwise serious situations such as child abductions.



STATE OF MONTANA

Type: Regulatory, with significant prohibited practices

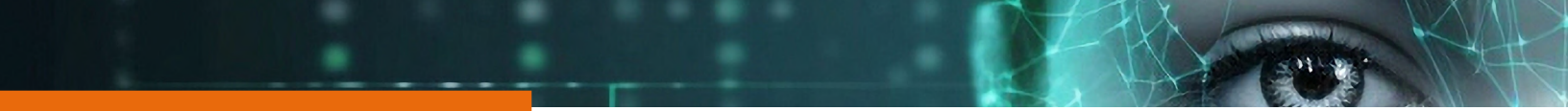
Effective: June 29, 2023, with applicability to some contracts retroactive to Jan. 1, 2022

Text Link: <https://leg.mt.gov/bills/2023/sesslaws/ch0781.pdf>

Applicable to: All state and local government agencies, including law enforcement agencies, except for K-12 school districts, which are excluded.

Key Requirements: Montana's new law would prohibit agencies from using "continuous facial surveillance," or installing or equipping "a continuous facial surveillance monitoring camera on public buildings or on public roads and highways of this state."

However, it specifically allows agencies to use or contract with third parties to provide "facial verification" if accompanied by a written use and privacy policy, and other conditions, including reporting use to the state's information technology board. While the stated purpose of the bill in Section 2 indicates the purpose is to also prohibit agency use of "facial identification," this is not directly articulated elsewhere in the bill.



The definitions used to differentiate these three terms nevertheless share some similarities and are interrelated, thus deserving close attention.

“Continuous facial surveillance” is defined as “the monitoring of public places or third-party image sets using facial recognition technology for facial identification to match faces with a prepopulated list of face images. The term includes but is not limited to scanning stored video footage to identify faces in the stored data, real-time scanning of video surveillance to identify faces passing by the cameras, and passively monitoring video footage using facial recognition technology for general surveillance purposes without a particularized suspicion of a specific target.”

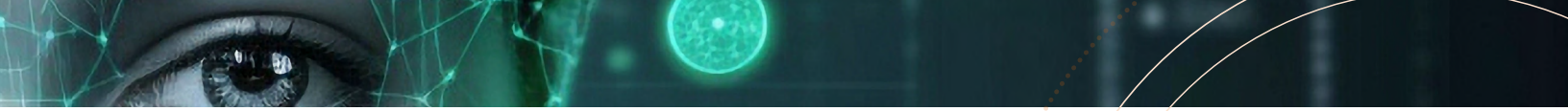
“Facial identification” is defined as “a computer system that, for the purpose of attempting to determine the identity of an unknown individual, uses an algorithm to compare the facial biometric data of an unknown individual derived from a photograph, video, or image to a database of photographs or images and associated facial biometric data in order to identify potential matches.” **Access control and security system applications** appear to be specifically excluded from the definition of facial identification, as the law states that term “does not include...a system used specifically to protect against unauthorized access to a particular location or an electronic device.”

“Facial verification” is defined as “the automated process of comparing an image or facial biometric data of a known individual to an image database, or to government documentation containing an image of the known individual, to identify a potential match in pursuit of the individual’s identity.”

Meanwhile, the definition of “facial recognition service” and “facial recognition technology” in the bill incorporates both “facial identification” and “facial verification.”

Third-party vendor requirements applicable to providers of “a facial recognition service” are extensive and potentially very limiting for some types of services. In addition to providing the client agency with a written privacy policy, among other requirements vendors must inform individuals and receive consent in writing regarding the “collection, storage, and use of the individual’s facial biometric data,” and to establish a data retention policy. For contracts with the Department of Corrections, the Department of Justice, and the Department of Labor and Industry, third-party contract requirements are applicable retroactively to Jan. 1, 2022.

Law enforcement agencies are authorized to use or request use of facial recognition technology, but only to investigate specific enumerated serious crimes, and when there is “probable cause to believe” that an unidentified individual in an image “has committed, is a victim of, or is a witness to a serious crime.” Also authorized is use of the technology to “assist in the location or identification of a missing or endangered person or the identification of a person who is deceased or believed to be deceased;” however, under all circumstances outside emergencies “posing an imminent threat



to person,” a warrant would be required *prior* to use, seemingly in contradiction to the uses authorized where a warrant would either be inapplicable or little to no information about the individual in question is available since they haven’t been identified.

The law also requires disclosure to criminal defendants identified with aid from the technology and makes facial recognition results inadmissible as evidence in court. Agencies are also directed that “to the extent applicable, the meaningful human review requirement for decisions that produce legal effects concerning individuals.” Agencies must report details to the Montana Department of Justice, which is required to create an audit process and produce an annual report summarizing data reported regarding the number of facial recognition searches run, the offenses that the searches were used to investigate and other information.

Note that none of the bill’s requirements are applicable to K-12 school districts, which are excluded from the definition of “state or local government agency.” Also excluded from applicability are state or local government agencies that use “facial verification in association with a federal agency to verify the identity of individuals presenting themselves for travel at an airport or other port.”

Enforcement: The law creates a private right of action against government agencies in violation, with penalties up to \$5,000 or actual damages, whichever is greater. Agency employees that violation provisions may be “subject to disciplinary action, including but not limited to retraining, suspension, or termination, subject to the requirements of due process and of an applicable collective bargaining agreement.”

POLICY PERSPECTIVE

Montana’s new law contains inconsistencies and ambiguities that are sure to create some confusion over what is and is not permitted for use by government agencies. Review by counsel is suggested to address related questions suppliers or end users may have.

With respect to law enforcement applications, it would require court approval for any use of the technology to look for leads based on photo evidence. This is the equivalent of requiring a warrant for soliciting tips from the public or through a media outlet using the same photo evidence of a person of interest, reflecting a misunderstanding of the specific and limited role of facial recognition technology in law enforcement investigations to the generate leads, not confirm identities. Also notable is that the list of offenses that can be investigated using the technology omits offenses involving distribution of dangerous drugs (including fentanyl) and related gang activity, as well as sexual assault, arson and burglary, making tools unavailable in investigations for these serious crimes. Concerns about these shortcomings were detailed in an October 2023 article in the *Missoulian*.⁴

⁴https://missoulian.com/opinion/column/joseph-courtesis-banning-crime-fighting-tools-harms-montanans/article_1c895358-5d4d-11ee-987d-4b7bfa829367.html



STATE OF WASHINGTON

Type: Regulatory

Effective: July 1, 2022

Text Link: <https://app.leg.wa.gov/RCW/default.aspx?cite=43.386>

Applicable to: All state and local government agencies, including law enforcement agencies

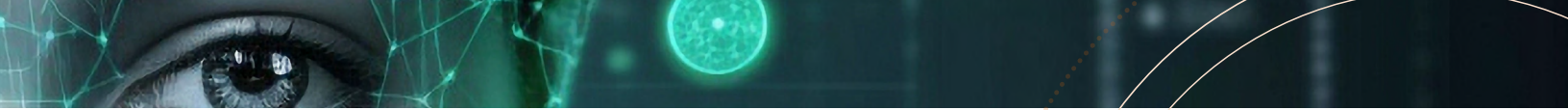
Key Requirements: Washington's law established extensive conditions for deployment and use of a "facial recognition service" by state or local government agency, defined as "technology that analyzes facial features and is used by a state or local government agency for the identification, verification, or persistent tracking of individuals in still or video images."

These conditions include, but are not limited to: 1) filing a notice of intent with the applicable state or local legislative authority, 2) producing an "accountability report" that includes certain details about the system, including, but not limited to, technological information, descriptions of the planned implementation, the use and data management policies, testing procedures and statistics on false positive rates, 3) making the accountability report available to the public for a comment period and holding at least three community meetings about it before it is finalized, 4) releasing the final accountability report to the public at least 90 days prior to the facial recognition service being deployed and 5) requiring vendors to disclose any complaints or reports of bias.

When a facial recognition service is used "to make decisions that produce legal effects concerning individuals," an agency must make those decisions subject to human review. "Legal effects" are defined as including "the provision or denial of financial and lending services, housing, insurance, education enrollment, criminal justice, employment opportunities, health care services, or access to basic necessities such as food and water, or that impact civil rights of individuals." In addition, such a system must be tested in "operational conditions" before it is deployed.

Additionally, agencies must require vendors to make available an application programming interface (API) or other mechanism that will enable independent testing of the system's accuracy across "distinct subpopulations." If the testing identifies unfair performance differences, the provider must mitigate those differences within 90 days.

Such agencies must conduct periodic training of all people who use the system or process data obtained by the system, maintain records "that are sufficient to facilitate public reporting and auditing" and annually report to their applicable legislative authority on the demographic data of people who were named in warrants for facial recognition surveillance. The law also establishes reporting requirements for judges who issue warrants for facial recognition (surveillance).



Some rules apply primarily to law enforcement. Facial recognition results may not be used as the sole basis to establish probable cause in a criminal investigation (though it can be used in conjunction with other evidence), and the use of facial recognition must be disclosed to criminal defendants “in a timely manner prior to trial.”

There are significant ambiguities regarding requirements applicable to law enforcement. For example, a warrant is required for using a facial recognition service to “engage in ongoing surveillance, conduct real-time or near real-time identification, or start persistent tracking.” “Real-time or near-real time identification” is undefined in the bill, and thus it is unclear whether this term also refers only to potential use for tracking specific persons by law enforcement or could also include routine investigative use to help make an identification quickly after a crime has occurred.

Certain uses are exempt. An agency does not have to comply with the law’s mandates if:

- It is the state Department of Licensing, which was previously authorized by the legislature to implement a facial recognition system (for antifraud purposes).
- The facial recognition system being used is under a contract that was in place when the law went into effect. The agency will, however, be required to comply with the law when it renews the contract or enters into a new one.
- It is required by a federal mandate to use a specific facial recognition system.
- It uses facial recognition in partnership with a federal agency at an airport or seaport. In this case, the agency must report the use to a legislative authority.

Enforcement: No mechanism specified.

POLICY PERSPECTIVE

While Washington’s law was heralded by its sponsors as the first in the nation state law on facial recognition, its implementation has been unsuccessful so far, and the model has not been fully replicated in any other state. Despite being in effect since July 2021, we are unaware of any agencies or technology providers that have completed the required criteria to implement a “facial recognition service” under the bill’s requirements.

It is clear only some public-sector use cases were considered. It is difficult to say, for example, exactly which requirements would extend in to access control and security systems that protect specific state or local government facilities, because it appears these use cases simply weren’t contemplated. Unlike Colorado’s more recent and somewhat similar measure, there is no clear exemption for physical access control. It provides one example of how a measure to regulate technology that is too broad, ambiguous and procedurally difficult can potentially deter versus reasonably regulate use of the technology.



UTAH

Type: Regulatory

Effective: May 5, 2021

Text Link: <https://le.utah.gov/~2021/bills/static/SB0034.html>

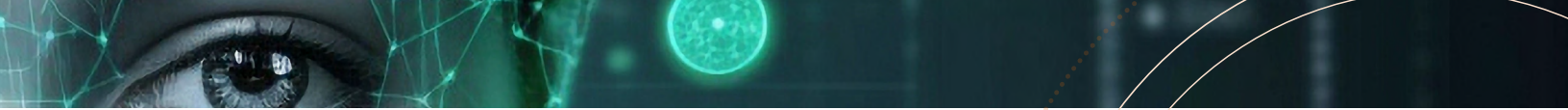
Applicable to: All state and local government agencies, including law enforcement agencies

Key Requirements: While Utah's law is structured primarily to regulate law enforcement agency requests for queries against the state driver's license and criminal records databases maintained by the Utah Department of Public Safety, the implications are broader.

Except as provided in the law, a state or local government entity may not use facial recognition system on an image database, terms that are narrowly defined. A facial recognition system means "a computer system that, for the purpose of attempting to determine the identity of an unknown individual, uses an algorithm to compare biometric data of the face of the unknown individual to facial biometric data of known individuals." An image database means "a database maintained by a government entity that contains images the government entity captures of an individual while the individual interacts with the government entity." Additionally, an "image database" specifically "does not include publicly available information."

The bill limits such use to the purposes and processes detailed in three sections: Section 77-23e-103 (law enforcement agency requests for facial recognition comparison made to other government entities), Section 77-23e-104 (law enforcement agency requests to the Department of Public Safety, and the Department's own use) and Section 77-23e-105 (Notice requirement for use of images in conjunction with facial recognition technology).

In addition to stipulating that only the Department can query the databases it manages, any law enforcement comparison or request can only be for 1) investigating a felony, a violent crime or a threat to human life and 2) identifying an individual who is deceased, incapacitated or at risk and otherwise unable to provide the law enforcement agency with his or her identity. Additionally, comparison is permitted for antifraud purposes in license/ID-card issuance processes, or the creation of a photo lineup as part of investigations of crimes listed above. In other caveats, secondary trained human review is required to validate a probable match determination, and additionally a government entity may not use a facial recognition system for investigating a civil immigration violation. In a later section, aggregated data on such comparisons must be reported annually to the Government Operations Interim Committee.



Under the notice section, notification is required to individuals whose images are used in conjunction with facial recognition technology specifically “When capturing an image of an individual when the individual interacts with the government entity.” Additionally, under the section, at least 30 days prior to “using a facial recognition system to conduct a facial recognition comparison” government entities must publish notice of proposed use on the entity’s website, a description of the image database to be used, information about how to provide public comment.

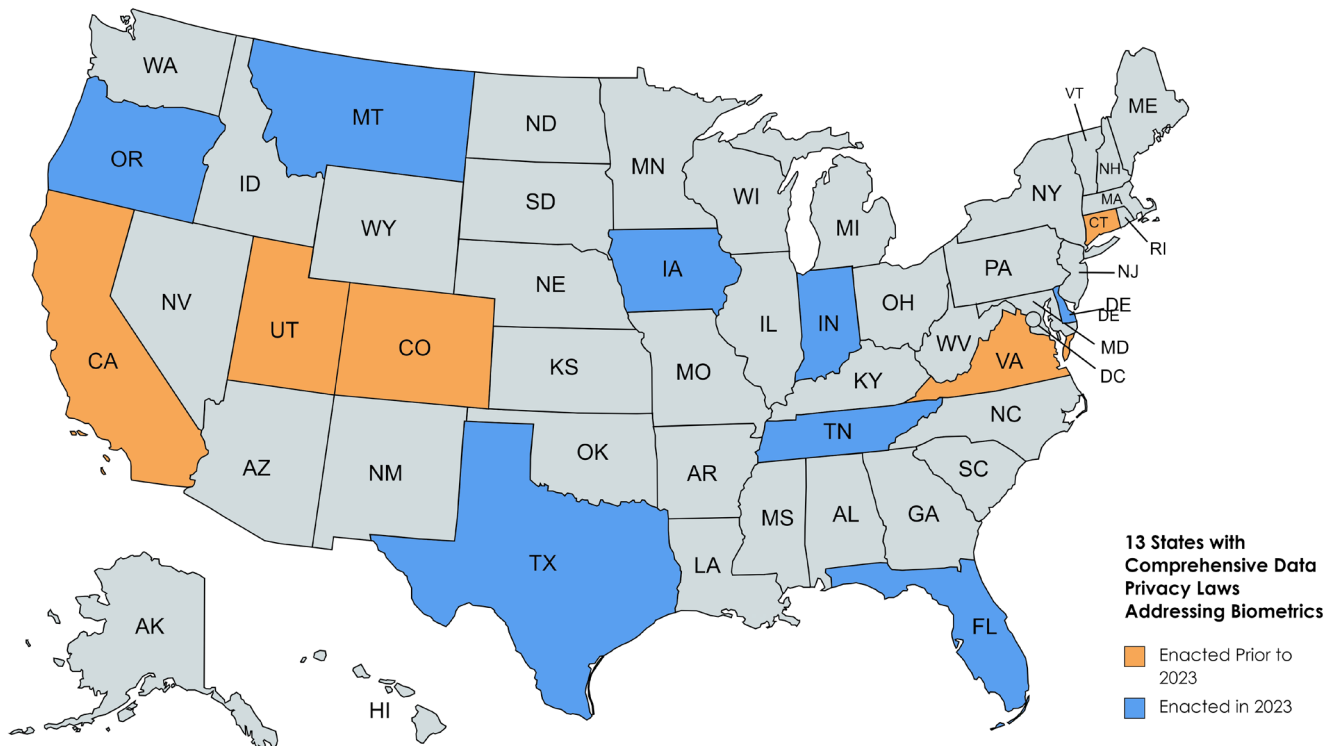
Enforcement: No mechanism specified.

POLICY PERSPECTIVE

In most respects, the law codified existing practices surrounding law enforcement investigative use of facial recognition technology established by the Department of Public Safety; however, as the proposal was moving through the Utah legislature, some observers raised questions, given the language, about whether and to what extent other applications of facial recognition by government entities outside of law enforcement could be impacted by the requirements. Analysis of committee consideration and debate on the measure reveals that proponents understood the measure to be focused on regulating law enforcement use, and that they did not discuss restricting other use by public entities beyond law enforcement agencies. Additionally, in response to questions about intent in this regard, an amendment was made late in the process by the bill’s sponsor that included adding a reference to the notice requirement section within the key operative sentence in subsection 103 as follows:

“Except as provided in this section and in **Section 77-23e-104 and Section 77-23e-105**, a government entity may not use a facial recognition system on an image database.”

To the extent that that use of the technology by non-law enforcement entities are covered by the bill, this language appears to indicate that use of “a facial recognition system on an image database” (as defined in the bill) outside of those purposes could be permitted so long as the basic conditions set forth for notice and public comment in section 77-23e-105 are met. It is also possible that in any case, based on the narrow definitions involved, verification/authentication applications of facial recognition – and perhaps others – would fall outside the scope of the bill. Given the significant ambiguities, review by counsel is suggested to address related questions suppliers or end users may have.



STATE LAWS THAT ONLY RESTRICT OR CONDITION USE BY LAW ENFORCEMENT AGENCIES



STATE OF ALABAMA

Type: Regulatory

Effective: July 1, 2022

Text Link: <https://arc-sos.state.al.us/ucp/L0932906.A11.pdf>

Applicable to: State and local law enforcement agencies

Key Requirements: Alabama's law prohibits state or local law enforcement agencies from using facial recognition match results as the sole basis for making an arrest or for establishing probable cause in a criminal investigation.

While this foundational rule is established in statute, the Alabama Justice Information Commission subsequently created detailed administrative rules, which can be adapted and updated over time. The comprehensive rules include requirements related to data limitations, privacy, training, audits and other areas. Effective March 17, 2023, this uniform standard applies to any Alabama state or local law enforcement agency utilizing the technology for criminal justice or public safety activity.⁵

⁵ <https://admincode.legislature.state.al.us/administrative-code/265-X-5>



STATE OF KENTUCKY

Type: Regulatory

Effective: July 14, 2022; model policy provided Jan. 1, 2024

Text Link: <https://apps.legislature.ky.gov/law/statutes/statute.aspx?id=52928>

Applicable to: State and local law enforcement agencies

Key Requirements: Any agency that uses facial recognition technology is required to have a use policy in place prior to using the technology, a full copy of which must be filed with the Justice and Public Safety Cabinet within 30 days of the adoption or any revision.

The measure also established a working group tasked with developing and posting a model policy for use by law enforcement agencies by Jan. 1, 2024. It directed that the model policy include the following elements:

- How search results using facial recognition technology relate to establishing probable cause for arrests
- A prohibition of using facial recognition technology to identify a person participating in constitutionally protected activities
- Creating a process for the agency to document instances in which facial recognition technology is used, that can be used to audit and verify images and information used
- Providing procedures for the confirmation of any initial findings generated by facial recognition technology by a secondary examiner
- Requiring data security and retention measures applicable to the law enforcement agency's use of facial recognition technology
- Specifying training procedures and processes to ensure all personnel who utilize facial recognition technology or access its data are knowledgeable about and able to ensure compliance with the policy
- Specifying a minimum accuracy standard with reference to a Face Recognition Vendor Test conducted by the National Institute of Standards and Technology (NIST)



STATE OF NEW HAMPSHIRE

Type: Ban, applicable to body-worn camera recordings only

Effective: Jan. 1, 2017

Text Link: <https://www.gencourt.state.nh.us/rsa/html/VII/105-D/105-D-2.htm>

Applicable to: State or local law enforcement agencies that utilize body-worn camera systems

Key Requirements: New Hampshire's law requires state or local law enforcement agencies that utilize body-worn camera systems to implement certain usage policies, which must include a prohibition on subjecting "any recording to analysis or analytics of any kind, including without limitation facial recognition technology and data mining."



STATE OF OREGON

Type: Ban, applicable to body-worn camera recordings only

Effective: Jan. 1, 2016

Text Link: https://oregon.public.law/statutes/ors_133.741

Applicable to: State or local law enforcement agencies that utilize body worn camera systems

Key Requirements: Oregon's law requires state or local law enforcement agencies that utilize body-worn camera systems to implement certain usage policies, which must include a prohibiting on using "facial recognition or other biometric matching technology to analyze recordings obtained through the use of the camera."

POLICY PERSPECTIVE

While likely well-intentioned to prevent a potential future form of government mass surveillance using body worn camera systems, the fact that such measures limit post-event analysis of images recorded by body cameras without any exception can have unintended consequences. Crimes in progress are sometimes recorded on body-worn cameras, which could include relevant facial images of victims, suspects or witnesses that investigators need to identify after the fact. Use of facial recognition software to analyze such evidence has already helped solve specific crimes and has the potential to help solve others. Many individuals who attacked officers defending members of Congress and the Capitol on Jan. 6, 2021, were later identified with help from facial recognition analysis of recordings taken by cameras worn by the officers while face to face with attackers.⁶ There are many other cases where images recorded by body-worn cameras may be the only source of critical information, including investigations of officer-involved shootings and other misconduct, in addition to attacks on law enforcement officers. This is one of the key reasons why the California Senate voted in May 2022⁷ not to extend that state's temporary law similar to Oregon's, and leading to its expiration at the end of 2022.

⁶ See example at https://www.youtube.com/watch?v=G98K-2uP_uA

⁷ https://leginfo.legislature.ca.gov/faces/billHistoryClient.xhtml?bill_id=20210220SB1038



STATE OF MASSACHUSETTS

Type: Regulatory, with significant prohibitions

Effective: July 1, 2021

Text Link: <https://malegislature.gov/Laws/GeneralLaws/PartI/TitleII/Chapter6/Section220>

Applicable to: State and local law enforcement agencies

Key Requirements: Enacted as part of a larger package of police reforms in 2020, this provision stipulates that law enforcement agencies can only perform or request use of facial recognition through a written request to the Registry of Motor Vehicles (RMV), the state police or the FBI. A law enforcement agency only can only perform a facial recognition search authorized by a court order, or without such an order for the purpose of identifying a deceased person or responding to an emergency involving “substantial risk of harm to any individual or group of people.” These requirements do not apply to the state police when performing investigatory functions related to the issuance of identification documents by the RMV (combating driver’s license fraud and identity theft).

Agencies must provide extensive documentation regarding the circumstances and subject of each facial

POLICY PERSPECTIVE

The Massachusetts police reform measure had originally included a blanket ban on any government entity in the commonwealth from using facial recognition technology for virtually any purpose; however, after a veto threat by then-Gov. Charlie Baker over this and several other provisions, it was rewritten by the legislature as a set of restrictions applicable to law enforcement only.

The new law also created a commission to study the government use of facial recognition technology and make further legislative recommendations. The commission produced its final report and recommendations in 2022,⁸ which pertain only to law enforcement use of the technology. Notably, approval of the recommendations was not unanimous, as several commissioners, including those representing law enforcement professionals, did not concur.

New legislation that would implement the recommendations was introduced for consideration during the 2023-2024 legislative session.⁹ The measure would in most ways further limit law enforcement use of the technology by 1) limiting analysis to images of suspects only (versus identifying witnesses, victims, etc.) and involving felony offenses only; 2) dramatically narrowing emergency use to “immediate danger of death or serious physical injury” scenarios; 3) requiring a warrant, not simply a court order; and 4) limiting the state police to querying a single source of data – citizen driver’s license photos only (versus criminal records, or with software like the Thorn organization’s Spotlight tool¹⁰ for investigating human trafficking and missing persons by searching online photos.) Additionally, the bill would allow the state police to use facial recognition technology other than that used by the RMV, if approved by the Executive Office of Technology Services and Security, and approval follows a public hearing on the proposed software.

⁸ <https://frcommissionma.com/>

⁹ <https://malegislature.gov/Bills/193/H1728>

¹⁰ <https://www.thorn.org/spotlight/>

recognition use or request and provide that information to the state on a quarterly basis. The Executive Office of Public Safety and Security is required to post an annual public report summarizing the data provided by agencies.



STATE OF VERMONT

Type: Ban

Effective: Oct. 7, 2020

Text Link: <https://legislature.vermont.gov/Documents/2020/Docs/ACTS/ACT166/ACT166%20As%20Enacted.pdf>

Applicable to: State and local law enforcement agencies

Key Requirements: Enacted as part of a larger package of police reforms in 2020, this law prohibits law enforcement officers from using facial recognition technology, which is additionally defined to include image analysis to determine a person's "sentiment, state of mind, or other propensities, including the person's level of dangerousness."



STATE OF VIRGINIA

Type: Regulatory

Effective: July 1, 2022

Text Link: Local law enforcement – <https://law.lis.virginia.gov/vacode/title15.2/chapter17/section15.2-1723.2/>

Campus law enforcement – <https://law.lis.virginia.gov/vacode/title23.1/chapter8/section23.1-815.1/>

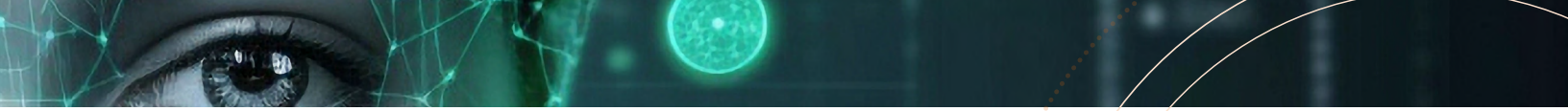
Applicable to: State, local and campus law enforcement agencies

Key Requirements: Agencies are prohibited from 1) using facial recognition technology outside of investigating a specific criminal incident or citizen welfare situation, which are detailed in a list of 14 specifically authorized purposes, 2) using potential match results as the sole basis to establish probable cause for an arrest, 3) real-time tracking of a known person's movements in public spaces, 4) creating a database of images using a live video feed or 5) enrolling comparison images in a commercial repositories except pursuant to an authorized use.

POLICY PERSPECTIVE

Vermont is the only state with a blanket ban on law enforcement use of facial recognition technology; however, just a few months after it was enacted, policymakers quickly discovered that the ban extended even to software for analyzing seized digital evidence in child sexual exploitation cases needed to solve such crimes.. The Vermont legislature returned and passed a new measure¹¹ (effective May 4, 2021) exempting use in such cases from the ban.

¹¹ <https://legislature.vermont.gov/Documents/2022/Docs/ACTS/ACT017/ACT017%20As%20Enacted.pdf>



Agencies using facial recognition technology are required to 1) notify the local governing body in writing prior to any procurement of facial recognition technology, 2) adopt a use policy that meets or exceeds standards in a model use policy to be developed by the Virginia State Police, 3) publicly post the agency's use policy relating to facial recognition and 4) publicly post an annual report detailing the agency's use of the technology.

The state's Division of Purchases and Supply (DPS) will evaluate and approve facial recognition technology for use by law enforcement, which must be 1) be evaluated by NIST and 2) have a top tier accuracy score of at least 98% on relevant tests within the NIST Facial Recognition Vendor Test Program, and across demographics associated with race, skin tone, ethnicity and gender.

The Virginia State Police has since developed and published its model policy,¹² and the DPS has issued and maintains the required list of approved facial recognition algorithms.¹³

Virginia's law was enacted with a four-year sunset provision and expires July 1, 2026, unless extended by new legislation.

POLICY PERSPECTIVE

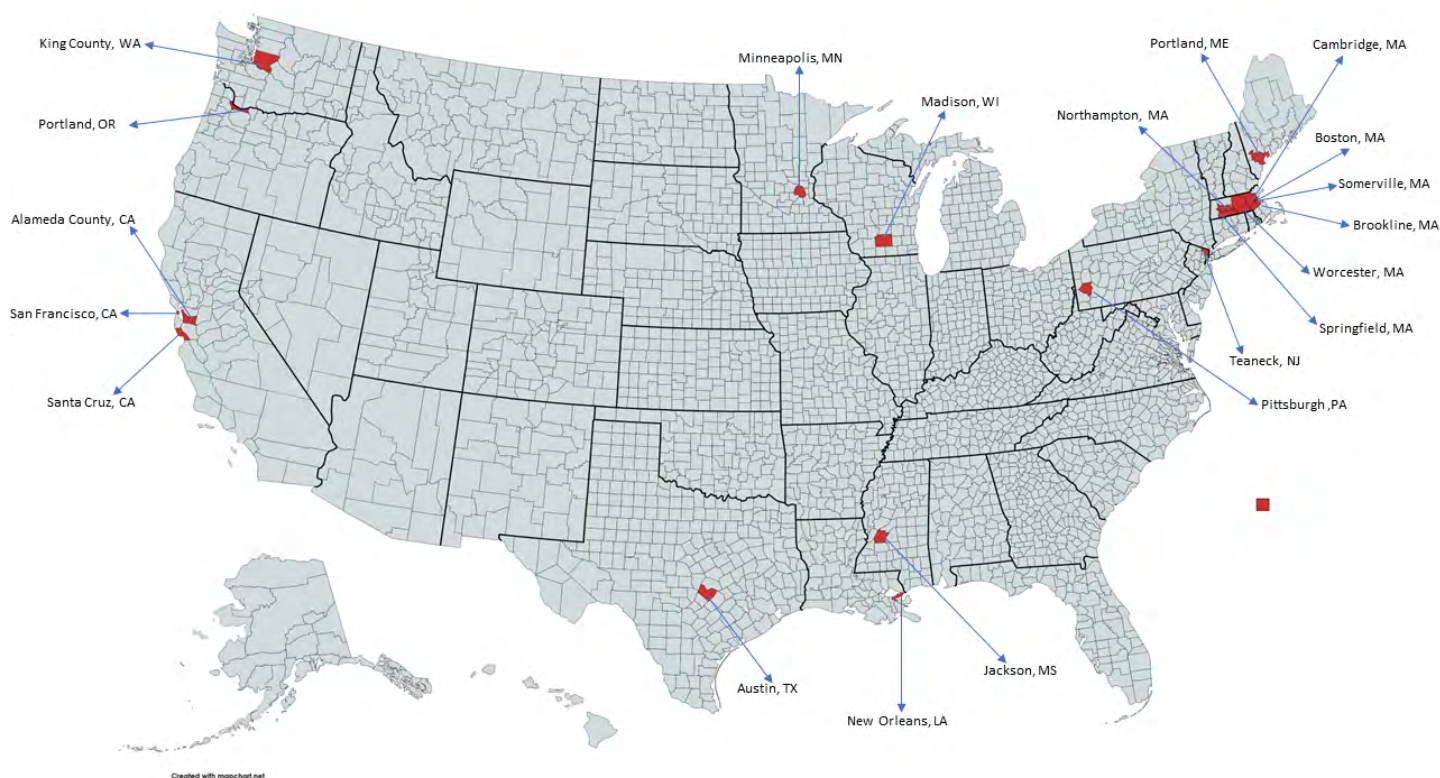
Virginia's law was passed in 2022 with bipartisan support from the majority of each party in both Virginia's Republican-controlled House of Delegates and Democrat-controlled Senate, including all Senate members of the Virginia Legislative Black Caucus.

It replaced a ban, in place from July 2021, that had quickly passed earlier that year with little review or debate during the peak of the COVID-19 pandemic. Many lawmakers became concerned with the public safety impact of the prohibition, after they became aware it had eliminated the ability some agencies had to query agency-held criminal records using the technology to investigate high profile crimes. The new law made it possible to restore this capability, but under comprehensive rules. See SIA's website¹⁴ for further details on Virginia's law.

¹² <https://vsp.virginia.gov/wp-content/uploads/2023/01/State-Police-Model-Facial-Recognition-Technology-Policy.docx>

¹³ <https://dgs.virginia.gov/procurement/resources/standards--specifications/>

¹⁴ <https://www.securityindustry.org/2022/03/15/virginias-new-rules-for-facial-recognition-and-what-they-mean/>

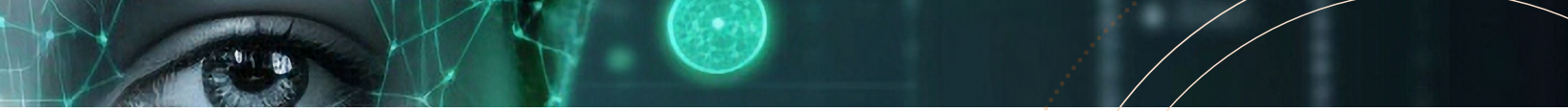


TRENDS IN LOCAL LAWS

Beginning with San Francisco, California, most local measures restricting facial recognition technology were enacted in 2019 or 2020, either as part of a larger ordinance restricting “surveillance technologies” or in the midst of calls for police reform in the wake of the killing of George Floyd in Minneapolis, Minnesota, and during the COVID-19 pandemic. The majority were enacted in jurisdictions in Boston, Massachusetts, and the San Francisco Bay area. Since then, even advocates of these types of measures have agreed those efforts have slowed nearly to a halt,¹⁵ as only one city (Anchorage, Alaska) followed suit in 2023. Meanwhile, in 2022 New Orleans, Louisiana, reversed its ban on law enforcement use of the technology and a temporary blanket ban that had been enacted in Baltimore, Maryland, expired without efforts to extend it.

Out of a total of 23 jurisdictions with ordinances specifically addressing facial recognition, 19 are applicable to municipal agencies, four apply only to the local law enforcement agency and just one

¹⁵ <https://www.technologyreview.com/2023/07/20/1076539/face-recognition-massachusetts-test-police/#:~:text=In%20May%202019%2C%20San%20Francisco,in%20cities%20across%20the%20state.>



prohibits uses of facial recognition technology by private businesses (Portland, Oregon).

The ordinances applicable to municipal agencies originate from the 2019 campaign by several civil rights and privacy organizations, so they are nearly identical and include the same notable common elements, for example:

- Blanket prohibition on use or contracting for use of facial recognition, often labeled and instead as “face surveillance.” In some cases, the term used is defined more broadly to include other biometrics or types of face analytics.
- Enforcement, following a “cure” period in some cases, through a private right of action with specified damages for agency violations as well as covering attorneys’ fees, and subjecting employees that violate the policy with administrative discipline.
- An “exception” for compliance with the National Child Search Assistance Act (which notably would not allow use of the technology to help find missing children, as that law simply requires law enforcement to report missing persons cases to a national repository and has nothing to do with facial recognition).

For these measures listed below, only key deviations from the common elements are noted.

LOCAL LAWS THAT RESTRICT OR CONDITION THE USE OF FRT BY LOCAL GOVERNMENT ENTITIES

ALAMEDA, CALIFORNIA

Type: Ban

Effective: Dec. 18, 2019

Text Link: <https://docs.alamedaca.gov/WebLink/DocView.aspx?id=645835&dbid=0&repo=CityofAlameda>

Applicable to: City employees

ANCHORAGE, ALASKA

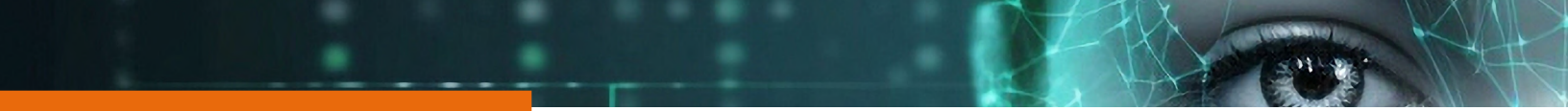
Type: Ban

Effective: April 18, 2023

Text Link: https://library.municode.com/ak/anchorage/ordinances/code_of_ordinances?nodeId=1230110

Applicable to: Municipal departments and employees

Key Requirements: The ordinance makes it unlawful for the municipality or municipality staff to 1) use facial recognition technology in conjunction with real-time surveillance or surveillance technology or 2) to obtain, retain, request, access or use facial recognition technology or information obtained from facial recognition technology.



Unique Aspects: A key exception is provided for municipal law enforcement to work with third-party agencies using facial recognition technology to identify: 1) human remains or suspected missing persons, 2) suspected victims of human trafficking or 3) suspected victims of child abuse or exploitation.

Another key exception is when facial recognition technology is an integrated, off-the-shelf capability, bundled with software or stored on a product or device, in which case it is permitted so long as the “municipal department does not use the facial recognition technology” and disclosure to the City Assembly is made when seeking to acquire the software, product or device.

Further, the assembly may approve further exceptions, in which case a 90-day trial period and report is required followed by an opportunity to consider and approve a permanent exception.

Enforcement: Establishes a private right of action against an agency in violation and specifies disciplinary action against employees in violation, subject to due process and of any applicable collective bargaining agreement.

BERKELEY, CALIFORNIA

Type: Ban

Effective Date: 2019

Text Link: <https://berkeley.municipal.codes/BMC/2.99.030>

Applicable to: The city manager or any person acting on the city manager’s behalf

BOSTON, MASSACHUSETTS

Type: Ban

Effective: June 2020

Text Link: https://codelibrary.amlegal.com/codes/boston/latest/boston_ma/0-0-0-18988

Applicable to: Any department, agency, bureau and/or subordinate division of the City of Boston, or Boston official

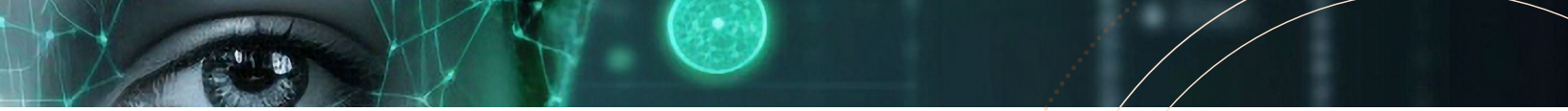
BROOKLINE, MASSACHUSETTS

Type: Ban

Effective: December 2019

Text Link: <https://www.brooklinema.gov/DocumentCenter/View/25283/Brookline-Town-By-Laws> (Article 8.39)

Applicable to: Any department, agency, bureau and/or subordinate division of the Town of Brookline, or Brookline official



CAMBRIDGE, MASSACHUSETTS

Type: Ban

Effective: Jan. 13, 2020

Text Link: https://library.municode.com/ma/cambridge/codes/code_of_ordinances?nodeId=TIT2ADPE_CH2.128SUTEOR_2.128.075PRACUSFARETE

Applicable to: The city or any city employees

KING COUNTY, WASHINGTON

Type: Ban

Effective Date: Date to come

Text Link: https://aqua.kingcounty.gov/council/clerk/code/05_Title_2.pdf (section 2.67)

Applicable to: Any King County administrative office or executive department

MADISON, WISCONSIN

Type: Ban, with key exceptions

Effective Date: Dec. 14, 2020

Text Link: https://library.municode.com/wi/madison/codes/code_of_ordinances?nodeId=COORMAWIVOIICH20--31_CH230FAGPUPO_23.64BAUSFASUTE

Applicable to: Any agency, department or division of the city

Unique Aspect: This version of the ban ordinance includes a notable law enforcement-related exemption for use “to identify and/or locate individuals who are victims of human trafficking, child sexual exploitation or missing children.”

MINNEAPOLIS, MINNESOTA

Type: Ban, with key exceptions

Effective: Feb. 12, 2021

Text Link: https://library.municode.com/mn/minneapolis/codes/code_of_ordinances?nodeId=COOR_TIT2AD_CH41INGO_ARTIIFARETE

Applicable to: City of Minneapolis and any city department, board, commission, officer or employee acting on behalf of the city

Unique Aspects: The Minneapolis ordinance uniquely includes an **exemption related to access control systems**, where facial recognition is used “solely for the purpose of controlling city employee access to or providing security for city workplaces that are not open to the public, provided that employees shall be permitted to opt out of using such technology to access the workplace.”

NORTHAMPTON, MASSACHUSETTS

Type: Ban

Effective: December 2019

Text Link: <https://ecode360.com/print/N02226?guid=35450944,35450949,35450950>

Applicable to: All officials and employees of the city, whether elected or appointed

Unique Aspect: No specified enforcement mechanism.

OAKLAND, CALIFORNIA

Type: Ban

Effective: Jan. 12, 2021

Text Link: https://library.municode.com/ca/oakland/codes/code_of_ordinances?nodeId=TIT9PUPEMOWE_CH9.64REACUSSUTE_9.64.045PRACUSBISUTEPRPOTE

Applicable to: Any city entity or employees

PORTLAND, MAINE

Type: Ban

Effective: November 2020

Text Link: <https://content.civicplus.com/api/assets/f28928e6-b63f-4a1f-805b-458f384f0bc8?cache=1800> (Article XI)

Applicable to: Any department, agency, bureau and/or subordinate division of the City of Portland, as well as any city official, defined as “any person or entity acting on behalf of the City of Portland, including any officer, employee, agent, contractor, subcontractor or vendor.”

SAN FRANCISCO, CALIFORNIA

Type: Ban

Effective: July 15, 2019

Text Link: https://codelibrary.amlegal.com/codes/san_francisco/latest/sf_admin/0-0-0-61746

Applicable to: Any city official, department, board, commission or other city entity

SANTA CRUZ, CALIFORNIA

Type: Ban

Effective: June 2020

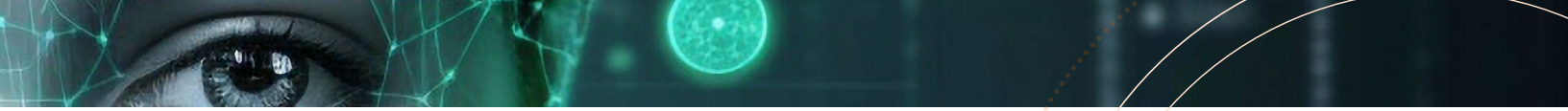
Text Link: <https://www.codepublishing.com/CA/SantaCruz/html/SantaCruz09/SantaCruz0985.html#9.85>

Applicable to: Any city department and its officers and employees

SOMERVILLE, MASSACHUSETTS

Type: Ban

Effective: July 2019



Text Link: https://library.municode.com/ma/somerville/codes/code_of_ordinances?nodeId=PTIIC00R_CH90FMIPR_ARTIIIOFAGPE_DIV1GE_S9-25BAUSFARESUTE

Applicable to: Any department, agency, bureau and/or subordinate division of the City of Somerville, or Somerville official, defined as “any person or entity acting on behalf of the City of Somerville, including any officer, employee, agent, contractor, subcontractor or vendor.”

SPRINGFIELD, MASSACHUSETTS

Type: Ban

Effective: February 2020

Text Link: <https://ecode360.com/print/SP2105?guid=37255776,37255781,37255786>

Applicable to: Any department, agency, bureau and/or subordinate division of the City of Springfield, or any person or entity acting on behalf of the City of Springfield, including any officer, employee, agent, contractor, subcontractor or vendor.

WORCESTER, MASSACHUSETTS

Type: Ban

Effective: December 2021

Text Link: <https://www.worcesterma.gov/uploads/01/5d/015dff85e652151ca487791f15f70ca6/revised-ordinances-2008-1.pdf> (section 41)

Applicable to: Any department, agency or official of the City of Worcester

TOWNSHIP OF TEANECK, NEW JERSEY

Type: Ban

Effective: February 2021

Text Link: <https://ecode360.com/37058639#37058639>

Applicable to: Any municipal entity of the Township, including the Teaneck Police Department

LOCAL LAWS APPLICABLE ONLY TO LOCAL LAW ENFORCEMENT AGENCIES

AUSTIN, TEXAS

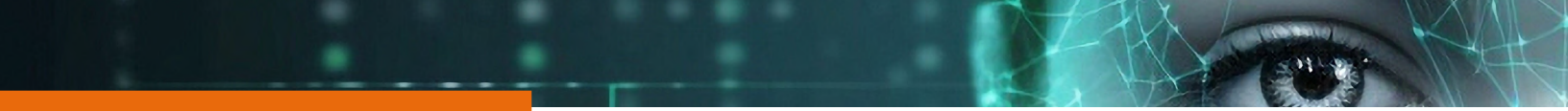
Type: Ban

Effective: June 11, 2020

Text Link: <https://services.austintexas.gov/edims/document.cfm?id=342169>

Applicable to: City agencies and potentially contractors (see below) for “criminal investigation purposes, law enforcement or surveillance purposes.”

Unique Requirements: The prohibition related to facial recognition technology is stated in city policy instead of an ordinance. The Council’s statement is as follows: “It is the stated policy of



the City that neither facial recognition technology designed or used to identify members of the public, nor information obtained from such facial recognition technology, shall be used by the City for criminal investigation purposes, law enforcement, or surveillance purposes, nor shall such technology be allowed to be used by private corporations on City property-such a policy applies across City operations.”

This policy is further incorporated into the Austin Police Department General Orders¹⁶ as follows: “No employee of the Department will use facial recognition technology, software, or services for law enforcement, criminal investigative, or surveillance purposes. No employee of the Department will knowingly permit facial recognition technology, software, or services to be installed on City property by a private corporation.”

JACKSON, MISSISSIPPI

Type: Ban

Effective: Aug. 18, 2020

Text Link: <https://storage.googleapis.com/proudcity/jacksonms/uploads/2020/08/Agenda-Packet-August-18-2020-Special-Council-Meeting-CLAIMS.pdf> (ordinance item #36)

Applicable to: Jackson Police Department. The measure simply states, “the use of facial recognition technology by the Jackson Police Department is hereby prohibited in the City of Jackson.”

NEW ORLEANS, LOUISIANA

Type: Regulatory

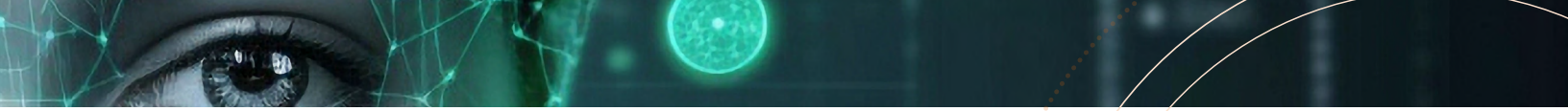
Effective: Oct. 1, 2022

Text Link: https://library.municode.com/la/new_orleans/codes/code_of_ordinances?nodeId=PTIICO_CH147SUTEDAPR_S147-2PRSUTE

Applicable to: New Orleans Police Department (NOPD)

Key Requirements: This ordinance specifically authorizes the use of facial recognition technology by NOPD under certain circumstances, and its enactment reversed an earlier ban on such use that had been included in a 2020 ordinance that also restricted cell-site simulator, characteristic tracking and predictive policing technologies. The ordinance permits NOPD, which works with the state’s fusion center, to request the use of facial recognition to investigate any of the 47 “significant” crimes enumerated in the ordinance. Specifically excluded are any laws criminalizing abortion or consensual sexual acts between persons 18 and older. Also prohibited is NOPD use of facial recognition technology “as a surveillance tool.”

¹⁶ <https://www.austintexas.gov/sites/default/files/files/Police/General%20Orders/GO%2008.25.23/APD%20General%20Orders%20Is-sued%2008-25-23.pdf>



The ordinance requires that any use must be consistent with NOPD's new comprehensive policy on facial recognition,¹⁷ and it also specifically directs that "Evidence obtained from facial recognition alone shall not be sufficient to establish probable cause for the purpose of effectuating an arrest by the NOPD or another law enforcement agency," which is also reiterated in the NOPD policy.

NOPD is required to submit quarterly reports to the City Council on requests the department makes regarding facial recognition, including the total number of requests, and for each request the case and crime involved, the age, gender and race of the subject, whether any "matches" resulted and if this led to an arrest and/or charges.

PITTSBURGH, PENNSYLVANIA

Type: Ban, for "identifying and tracking" only

Effective: Sept. 24, 2020

Text Link: https://library.municode.com/pa/pittsburgh/codes/code_of_ordinances?nodeId=COOR_TITONEAD_ARTIIOR_CH116DEPUSA_S116.15SESUTE

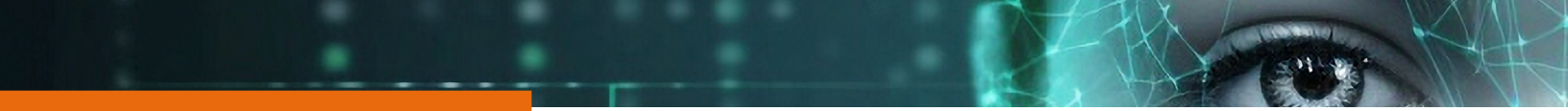
Applicable to: Bureaus and offices within the Department of Public Safety¹⁸

Key Requirements: Such entities, most significantly the Bureau of Police, are prohibited from obtaining, accessing or using facial recognition technology, narrowly defined as "Any computed-based software, program, system, or related facial biometric surveillance technology that, without a subject's knowledge or consent, and in an automated or semi-automated manner, analyzes images and the characteristics of human faces to, alone or in combination, to (a) Identify and track, or assist in the identifying and tracking of, individuals at a distance; or (b) Log characteristics of an individual's face, head, or body to infer emotion, associations, activities, or location."

An exception to the prohibition is provided in "exigent circumstances," in which notification must be provided to the City Council within 30 days. Exigent circumstances are defined as an "emergency situation about which the director of the Department of Public Safety or the chief of the Bureau of Police holds a good faith belief that imminent death, physical harm or significant property damage or loss can only be prevented by or responded to with the immediate and temporary use of" the technology.

¹⁷ <https://nola.gov/getattachment/NOPD/Policies/Chapter-51-1-1-%E2%80%93-Use-of-Facial-Recognition-Technology-for-Criminal-Investigations-Effective-10-2-22.pdf?lang=en-US>

¹⁸ <https://pittsburghpa.gov/publicsafety/index.html>



LOCAL LAWS THAT RESTRICT OR CONDITION THE USE OF FRT BY BOTH LOCAL GOVERNMENT ENTITIES AND BUSINESSES

PORTLAND, OREGON

Type: Ban

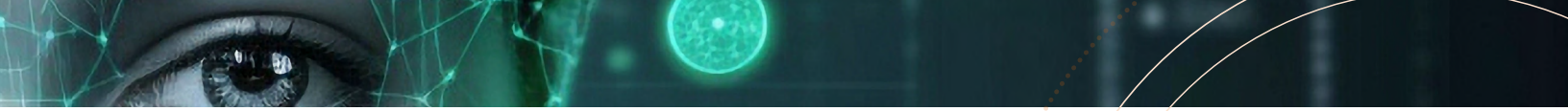
Effective: Sept. 9, 2020; Jan. 1, 2021

Text Links: Ordinance applicable to city agencies – <https://efiles.portlandoregon.gov/Record/13945278>; Ordinance applicable to local businesses – <https://www.portland.gov/code/34/10>

Applicable to: City bureaus, and “private entities” defined as “any individual, sole proprietorship, partnership, corporation, limited liability company, association or any other legal entity, however organized.”

Key Requirements: Portland passed two separate ordinances on facial recognition. The first, a ban applicable to city bureaus, closely resembles similar ordinances in other cities. The second one applicable to use by private entities is quite broad, with exceptions only for unlocking personal devices, using social media and “complying with federal, state and local laws.” The measure states “a Private Entity shall not use Face Recognition Technologies in Places of Public Accommodation within the boundaries of the City of Portland.” Places of Public Accommodation are further defined as “Any place or service offering to the public accommodations, advantages, facilities, or privileges whether in the nature of goods, services, lodgings, amusements, transportation or otherwise,” which excludes “An institution, bona fide club, private residence, or place of accommodation that is in its nature distinctly private.”

Areas of Ambiguity: The definitions related to “face recognition” in the measures could be seen as contradictory, making it difficult to determine precisely what it prohibited. On the one hand, “Face Recognition” itself is defined narrowly, pointing to identification-only use cases: “searching for a reference image in an image repository by comparing the facial features of a probe image with the features of images contained in an image repository (one-to-many search). A face recognition search will typically result in one or more most likely candidates – or candidate images – ranked by computer-evaluated similarity or will return a negative result.” This definition is, in turn, incorporated into the operative term in the ordinance, “Face Recognition Technology,” which is defined as “an automated or semi-automated processes using Face Recognition that



assist in identifying, verifying, detecting, or characterizing facial features of an individual or capturing information about an individual based on an individual's face." While this would seem to additionally point to verification uses of facial recognition and possibly face image classification, those functions would fall outside of Face Recognition as earlier defined.

Enforcement: The ordinance applicable to private entities includes a private right of action and a significant penalty provision, under which those "injured by material violation" of the ordinance may recover the greater of actual damages or \$1,000 per day for each day of a violation, plus attorneys' fees. At least one case was filed so far, a class action *Norby vs. Jacksons Food Stores*,¹⁹ where the plaintiffs sought \$10 million; however, the case was subsequently withdrawn by the plaintiffs shortly after it was filed in January 2023.

ADDITIONAL UNIQUE STATE AND LOCAL LAWS ON FACIAL RECOGNITION

MARYLAND

Type: Ban, specific to employment interviews

Effective: Oct. 1, 2020

Text Link: https://mgaleg.maryland.gov/2024RS/Statute_Web/gle/gle.pdf

Applicable to: Employers in Maryland

Key Requirements: Maryland's Labor and Employment Code Section 3-717 restricts employers from utilizing facial recognition services for creating facial templates during applicant interviews for employment unless the applicant provides consent through a signed waiver.

NEW HAMPSHIRE

Type: Ban, specific to Division of Motor Vehicles

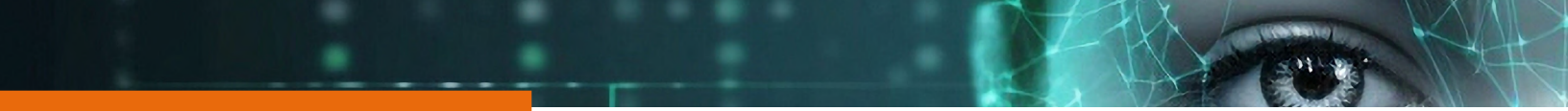
Effective: Sept. 26, 2014

Text Link: https://mgaleg.maryland.gov/2024RS/Statute_Web/gle/gle.pdf

Applicable to: New Hampshire Division of Motor Vehicles

Key Requirements: This law simply states that the division "is prohibited from using any facial recognition technology in connection with taking or retaining any photograph or digital image for purposes of this chapter." New Hampshire is one of only several states that do not allow their motor vehicle administration authorities to use facial recognition technology in antifraud checks

¹⁹ <https://static1.squarespace.com/static/5a1c632e0daed866bee2e6ed/t/63d0267a9b3e6367b2fd45aa/1674585725883/Norby+v+Jackson+Food+Stores++3-23-cv-00005++Complaint+as+Removed+to+D+Or.pdf>



prior to issuing new state drivers licenses, and the only one that establishes such a prohibition in statute. Most states use the technology as a key part of the process to ensure the same applicant is not submitting fraudulent information to create and obtain documents for multiple identities (which support identity theft, other forms of fraud, human trafficking and other criminal activity), a process that is one the key compliance requirements under the REAL ID Act.

CITY OF NEW YORK

Type: Regulatory

Effective: July 9, 2021

Text Link: <https://codelibrary.amlegal.com/codes/newyorkcity/latest/NYCAadmin/0-0-0-42626>

Applicable to: Commercial establishments in the city, defined to include “a place of entertainment, a retail store, or a food and drink establishment.”

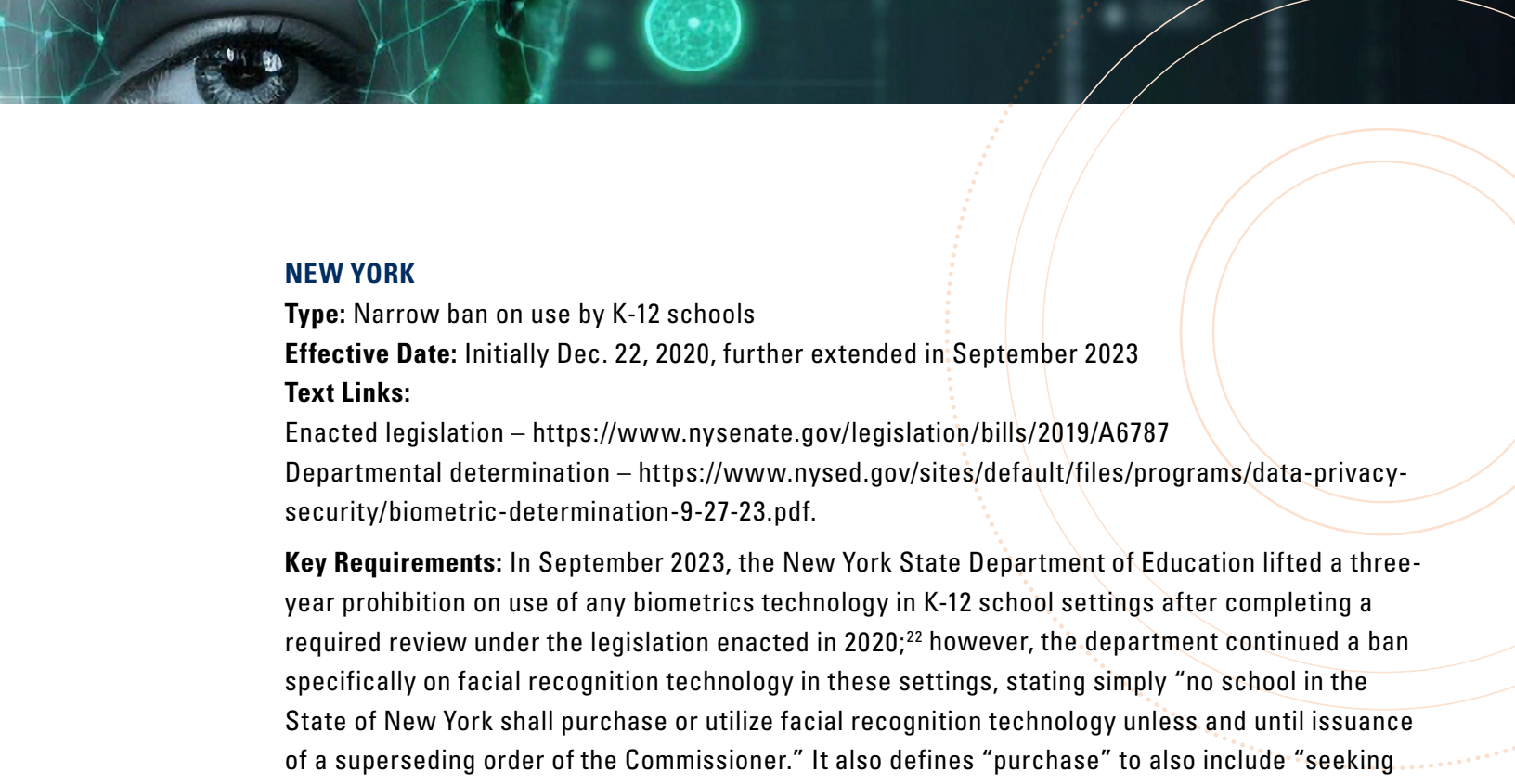
Key Requirements: The City of New York’s Biometric Identifier Information Law imposes requirements on private entities, and the city is uniquely the only U.S. jurisdiction implementing a municipal-level biometric data law. Generally, the law prohibits the sale, lease, trade or other transactions of biometric identifier information, but in a key provision more impactful to daily operations, the law requires commercial establishments collecting biometric information from customers to disclose this practice through clear and conspicuous signage. The New York City Department of Consumer Affairs has published a rule regarding the signage,²⁰ including suggested signage that would be acceptable disclosure.²¹ However, businesses implementing facial recognition as part of security camera or screening systems may want to consider a simpler approach to signage to avoid unnecessary confusion, stating simply that for the safety of guests and employees, security cameras and facial recognition technology that collects, converts, and retains biometric information is in use on the premises.

Enforcement: As the law is enforced through an established private right of action, any pending lawsuits should be monitored, as outcomes could impact future interpretations. As of 2023, there had only been one case filed, the class action *Rodriguez Perez v. Amazon.com*, which alleges that Amazon did not properly inform its customers about the use of biometrics at Amazon Go stores, where its “Just Walk Out” technology allows registered customers to make purchases by scanning their palms.²²

²⁰ https://rules.cityofnewyork.us/wp-content/uploads/2021/07/NOA_DCWP-Rule-re-Biometric-Data-Collection.pdf

²¹ <https://www.nyc.gov/assets/dca/downloads/pdf/businesses/Biometric-Identifier-Information-Disclosure-Sign.pdf>

²² <https://www.usatoday.com/story/tech/2023/03/17/amazon-go-lawsuit-biometric-data/11491200002/>



NEW YORK

Type: Narrow ban on use by K-12 schools

Effective Date: Initially Dec. 22, 2020, further extended in September 2023

Text Links:

Enacted legislation – <https://www.nysenate.gov/legislation/bills/2019/A6787>

Departmental determination – <https://www.nysed.gov/sites/default/files/programs/data-privacy-security/biometric-determination-9-27-23.pdf>.

Key Requirements: In September 2023, the New York State Department of Education lifted a three-year prohibition on use of any biometrics technology in K-12 school settings after completing a required review under the legislation enacted in 2020;²² however, the department continued a ban specifically on facial recognition technology in these settings, stating simply “no school in the State of New York shall purchase or utilize facial recognition technology unless and until issuance of a superseding order of the Commissioner.” It also defines “purchase” to also include “seeking grant money or other financing including reimbursement under the Smart Schools Bond Act.” Notably, the commissioner left open the possibility of changes to the current policy in a future determination.

POLICY PERSPECTIVE

Unfortunately, continuing this prohibition means potentially life-saving applications of the technology for security purposes remain unavailable to New York schools. For example, the system used by the Lockport City School District, the subject of a lawsuit and pressure from the New York American Civil Liberties Union, had successfully flagged for school personnel several individuals who entered school grounds despite legally imposed restrictions (including sex offenders) during the brief months it had been operational 2020, achieving its narrow security purpose of screening adult visitors.

In fact, the potential value of facial recognition technology, implemented in a responsible, transparent

and effective way for security, is acknowledged by experts in the school safety field. The Partner Alliance for Safer Schools (PASS) Guidelines for K-12 Safety and Security, for example, describe legitimate use cases for the technology in access control and visitor screening.

SIA has urged that a more appropriate policy for New York schools could be to limit use of facial recognition in K-12 both 1) to safety and security and 2) for services involving students only if there is parental consent, which would preserve proven applications while pausing other emerging uses of facial recognition that might need deeper evaluation.

²² <https://www.securityindustry.org/2023/10/02/new-york-lifts-ban-on-biometric-technologies-in-k-12-schools/>



securityindustry.org

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